

Andhra Pradesh Gram Panchayat (Erection of Telecommunication Towers) Rules' 2012

Source: <https://indiankanoon.org/doc/162126180/>

Skip to main content

Legal Document View

Tools for analyzing structure and cite text of judgments

Unlock Advanced Research with

PRISM

AI

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

Know your Kanoon

-

Doc Gen Hub

-

Counter Argument

-

Case Predict AI

-

Talk with IK Doc

-

...

Upgrade to Premium

[Cites

0

, Cited by

0

]

State of Andhra Pradesh - Act

Andhra Pradesh Gram Panchayat (Erection of Telecommunication Towers) Rules' 2012

ANDHRA PRADESH

India

Andhra Pradesh Gram Panchayat (Erection of Telecommunication Towers) Rules' 2012

Rule ANDHRA-PRADESH-GRAM-PANCHAYAT-ERECTION-OF-TELECOMMUNICATION-TOWERS-RULES-2012 of 2012

Published on 9 October 2012

Commenced on 9 October 2012

[This is the version of this document from 9 October 2012.]

[Note: The original publication document is not available and this content could not be verified.]

Andhra Pradesh Gram Panchayat (Erection of Telecommunication Towers) Rules' 2012

Published vide Notification No. G.O. Ms. No. 334, Panchayat Raj and Rural Devloplepment (Parts IV), dated 09.10.2012

Last Updated 4th September, 2019

No. G.O. Ms. No. 334. - In exercise of the powers conferred under sub-section (1) of section 268 read with Section 119 of the Andhra Pradesh Panchayat Raj Act' 1994 (Andhra Pradesh Act No.13 of 1994), the Government of the Andhra Pradesh hereby makes the following rules.

1.

Short title.

(1)

These rules may be called the Andhra Pradesh Gram Panchayat (Erection of Telecommunication Towers) Rules' 2012.

(2)

These rules shall come into force with immediate effect. However, the Ground based telecom structure already erected in the Gram Panchayats which are not covered under these rules are leviable for payment of Rs.10,000/- as one time fee to regularize them as per these rules.

2.

Mandatory to obtain preliminary approval / permission etc.

- The applicants (service providers) shall obtain necessary preliminary approval from the Executive Authority of Gram Panchayat concerned before erecting telecommunication towers and related structures and the structural stability certificate from the respective technical authority before granting final permission and license for usage who intent to erect the telecommunication towers in the respective Gram Panchayats subject to fulfilling the other conditions on the following;

(i)

The applicant shall obtain approval of Air Traffic Controller, Airport Authority of India for exempting of roof top antenna from height restriction, in case such exemption is required.

(ii)

The Applicant shall take special precaution for fire safety and lightening etc.,

(iii)

The Applicant shall furnish a legally valid undertaking that they are solely responsible for any damage to the building and for public safety.

(iv)

The Applicant shall furnish NOC from the surrounding building owners, and from the concerned building owners in case rooftop installations.

3.

Norms for issuing license.

(a)

The Inter- Ministerial Committee on EMF radiation in its report has recommended that mobile towers should not be installed near high density residential areas, schools, play grounds and hospitals. Accordingly, the Executive Authority of Gram Panchayat shall impose restrictions on installation of mobile towers near high density residential areas, schools, playgrounds and hospitals as far as possible.

(b)

Every application filed by any Telecom company shall be scrutinised by the Executive Authority of Gram Panchayat in two (2) stages. In the first stage the Executive Authority of Gram Panchayat shall issue a preliminary license called "Temporary permit" to those telecom companies whose applications fulfilled the locational (site) norms. No public road shall be used for erection of telecom structures. However, other public sites (other than public roads) including the Gram Panchayat properties shall not be used for erection of Telecom structures without taking the site by the company on lease. The terms and conditions of lease shall be as per G.O.Ms.No.215 PR&RD (Pts-III)Dept., dated 25.06.2001.

(c)

In every case, where the locational norms as prescribed in these rules and the Act are met by the Telecom Company, the Executive Authority shall issue a temporary permit to erect the towers and related structures.

(d)

The Gram Panchayat may collect a fee of Rs.1000/- along with the application and grant a temporary permit to erect the towers and related structures to all eligible applicants who fulfilled the site norms prescribed above.

(e)

In the second stage, on completion of the erection/installation work, the applicant should obtain and furnish a structural stability certificate to the Gram Panchayat, issued by a qualified Structural Engineer having license with the sanctioning authority of the respective Gram Panchayat and obtain a license to operationalize the structures. Gram Panchayat may levy installation and license renewal fee as per the following:-

Sl.No

Category

Fee to be levied by Gram Panchayats

1

2

Cell tower

installation fee (One time)

(a) Ground based

towers

(b) Roof top towers

License renewal fee (Annual) for Land based /

Roof top towers

Rs.15,000/-

Rs.12,000/-

Rs.1,000/-

(f)

Apart from the installation and license fee levied by the Gram Panchayat the applicant will pay lease rent to the owner of land/building on which the structure will be put at a negotiated rate.

(g)

Every application for renewal of license must be supported by an updated structural stability certificate issued by a qualified Structural Engineer having license with the sanctioning authority of the respective Gram Panchayat.

(h)

In case the Executive Authority of Gram Panchayat fails to convey its decision within 30 days or rejected the application on certain grounds, the aggrieved party (Telecom Company) may prefer the first appeal before Gram Panchayat Committee, who decide the appeal based on the locational norms prescribed in these rules within 30 days of filing appeal. Further appeal on the decision of Gram Panchayat Committee shall lie to the Commissioner or his/her nominee within 30 days on which the authority shall pass orders within 30 days of receipt of such appeal. Final appeal on the orders of Commissioner or his/her nominee shall lie before the Government in the form of a Revision Petition under Section 264 of the Andhra Pradesh Panchayat Raj Act' 1994.

4.

Insurance / Compensation.

- The applicant company should submit an undertaking to the Gram Panchayat to Provide safety and security nets by paying either Insurance premium or compensation at the rates prescribed by Government from time to time to deal with the damages caused to human and animal life [cases of causalities, injuries, etc.,) and damages to properties etc.,

5.

Regulation of any matter.

- The Government shall be the final authority in regard to regulation of any matter arising out of these rules.

Related AI tags, queries and research notes

Translation